the governed; that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or abolish it".[3] This was the reflection of Locke's idea of resistance, which conveys the idea that Government is not their master; it is created by the people voluntarily and maintained by them to secure their own good. Individuals give up to the society those rights which are essential to perform certain functions but retain all other natural rights to himself including the right to resistance if the government endeavours to invade the arbitrary rights, liberties or fortunes of the people.[3a]

However, the American Declaration contained relatively very few explicit guarantees of individual rights. Under strong demands, the first ten amendments to the US constitutions, generally referred to as the Bill of Rights, were made to address the shortcomings. Additional amendments, adopted in succeeding years, guaranteed equal rights for racial minorities and for women. The French Declaration of the Rights of Man and the Citizen adopted in 1789 was analogous to the British and American traditions. The second Article of this Declaration proclaimed, "The aim of all political association is the conservation of the natural and inalienable rights of man". The rights being liberty, property, security and resistance to oppression. This Declaration proclaimed major rights of man, which came to be identified as civil and political rights. The basic principle that all men are born free and remain so and are equal in their rights; in case of particular rights, such as equality before law, freedom not to be arrested except in conformity with law, freedom of opinion, freedom of expression which were upheld in the Declaration.[4] This liberal, democratic tradition of human rights were later incorporated in the Constitution and legal systems of the other countries of the world in varying degrees. But conspicuous developments have taken place after the Second World War when efforts were made to institutionalize and guarantee human rights, either through the United Nations or through other regional instruments.

The formation of the United Nations was a landmark in the institutionali-zation of human rights. The UN Charter and the Universal Declaration of Human Rights are the most explicit